

SENATE No. 338

The Commonwealth of Massachusetts

PRESENTED BY:

Sal N. DiDomenico

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act promoting high-quality comprehensive literacy instruction in all Massachusetts schools.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Sal N. DiDomenico</i>	<i>Middlesex and Suffolk</i>	
<i>Nick Collins</i>	<i>First Suffolk</i>	<i>4/7/2025</i>
<i>Michael O. Moore</i>	<i>Second Worcester</i>	<i>6/30/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>10/22/2025</i>

SENATE No. 338

By Mr. DiDomenico, a petition (accompanied by bill, Senate, No. 338) of Sal N. DiDomenico, Nick Collins and Michael O. Moore for legislation to promote high-quality comprehensive literacy instruction in all Massachusetts schools. Education.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 263 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act promoting high-quality comprehensive literacy instruction in all Massachusetts schools.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 55A of chapter 15, as appearing in the 2022 Official Edition, so
2 appearing, is hereby amended by striking the language “(6) review the progress of overall
3 student achievement and; (7) evaluate student performance, school and district management,
4 overall district governance and any other areas deemed necessary by the office.” in lines 56
5 through 59, and replacing it with the following language:- “(6) evaluate the alignment of literacy
6 instructional materials and curricula with department-recommended high quality literacy
7 instructional materials and curricula, as per section 1E of chapter 69; (7) review the progress of
8 overall student achievement and; (8) evaluate student performance, school and district
9 management, overall district governance and any other areas deemed necessary by the office.”

SECTION 2. Section 1E of chapter 69 of the General Laws, as appearing in the 2022 Official Edition, is hereby amended by adding at the end of the first paragraph the following sentence:- Curricula selected by school districts to meet the curriculum frameworks for elementary literacy must be aligned with evidence-based literacy instruction.

SECTION 3. Subsection (c)(ii) of section 1S of chapter 69 of the General Laws, as so appearing, is hereby amended by striking out, in line 41, the words “and (J)”, and inserting in place thereof the following words:- (J) implementing evidence-based literacy instruction; and (K)

SECTION 4. Said subsection (c)(ii) of said section 1S of chapter 69, as so appearing, is hereby further amended by striking out, in line 44, the word “(I)”, and inserting in place thereof the following word:- (J)

SECTION 5. Said subsection (c)(ii) of section 1S of chapter 69, as so appearing, is hereby further amended by adding at the end of the first paragraph the following sentence:- District plans must address implementing evidence-based literacy instruction if the results from the early literacy screening required by section 2 of chapter 71B indicate more than 50 percent of students in kindergarten through third grade are below relevant benchmarks for age-typical development in specific literacy skills.”

SECTION 6. Section 38G of chapter 71 of the General Laws, as so appearing, is hereby amended by inserting after the word “personnel”, in line 281, the following:-

provided that policies and guidelines must include alignment with evidence-based literacy instruction for educator preparation programs to be approved.

SECTION 7.

Section 1. Notwithstanding any general or special law to the contrary, as used in this bill, the following words shall, unless the context requires otherwise, have the following meanings:-

“Department” means the Department of Elementary and Secondary Education

“Evidence-based literacy instruction" means structured instructional practices, including sequential, systematic, explicit, and cumulative teaching, that (i) addresses the five essential components of reading instruction: phonemic awareness, phonics, vocabulary development, reading fluency — including oral reading/communication skills, and reading comprehension, (ii) are based on reliable, trustworthy, and valid evidence consistent with scientifically-based reading research; (iii) are used in core or general instruction, supplemental instruction, intervention services, and specialized reading instruction provided in accordance with an individualized education plan; (iv) have a demonstrated record of success in adequately increasing students' competency in the areas of, vocabulary development, oral language, and comprehension and in building mastery of the foundational reading skills of phonological and phonemic awareness, alphabetic principle, phonics, writing and spelling, and text reading fluency; and (v) are able to be differentiated in order to meet the individual needs of students. The instruction may not include implicit and incidental instruction in word reading, visual memorization of whole words, guessing from context, and picture cues, which may also be known as MSV or three-cueing. Evidence-based literacy instruction should align with scientifically-based reading research standards set forth in 20 USC 6368 (3)(4)(5)(6)(7).

"Scientifically based reading research" means research as defined by Congress in 20 USC 6368 (6) that (i) applies rigorous, systematic, and objective observational or experimental

procedures to obtain valid knowledge relevant to reading development, reading instruction, and reading and writing difficulties and (ii) includes research that a) employs systematic, empirical methods that draw on observations or experiment; b) involves rigorous data analyses that are adequate to test the stated hypothesis and justify the general conclusions drawn; c) relies on measurements or observational methods that provide valid data across evaluators and observers and across multiple measurements and observations; and d) has been accepted by a peer-reviewed journal or approved by a panel of independent experts through a comparably rigorous, objective, and scientific review, and (iii) explains how proficient reading and writing develop, why some children have difficulties developing key literacy skills, and how schools can best assess and instruct early literacy, including the use of evidence-based literacy instruction practices to promote reading and writing achievement.

Section 2. (a) The department shall provide tools and resources to aid districts in providing adequate professional development aligned with evidence-based literacy instruction and scientifically-based reading research for literacy teachers, paraprofessionals, and reading specialists in grades pre-kindergarten through third grade.

(b) The department shall create and maintain

i. A list of department-approved, high-quality professional development programs and vendors aligned with evidence-based literacy instruction best practices and scientifically-based reading research.

ii. A set of online training modules available and free to all teachers that provide training on the foundational practices and pedagogy aligned with evidence-based literacy instruction best practices and scientifically-based reading research.

75 Section 3: (a) The department shall create guidelines for districts to use to determine if
76 any students exhibit a reading deficiency. Guidelines shall include the steps that districts must
77 follow to address and remedy such reading deficiencies. The department shall consult experts to
78 identify and make available to districts literacy intervention approaches that are aligned with the
79 essential components of evidence-based literacy instruction and scientifically-based reading
80 research.

81 (b) Districts shall follow department guidelines established in subsection (a) for any
82 student in kindergarten through grade 3 who exhibits a deficiency in reading.

83 Section 4: (a)(1) The department shall identify a list of data requirements for reporting
84 purposes in order to ensure that districts are implementing evidence-based literacy instruction
85 under this bill. The department shall publish reporting requirements by the start of each school
86 year.

87 (2) Beginning in 2025, each district shall report annually to the department, on or before
88 October 31, the data reporting requirements set out in subsection (a)(1).

89 (b) Annually, beginning no later than December 31, 2025, the department shall aggregate
90 data collected from each district under this section and file a report with the clerks of the senate
91 and house of representatives, the joint committee on education and made public on the
92 department's website.

93 Section 5. The department shall promulgate such rules and regulations as it deems
94 necessary to implement the provisions of this bill.

95 Section 6. In establishing apprenticeship pathways to educator licensure, the Department
96 shall ensure that all participants in approved apprenticeship programs shall receive an adequate
97 foundation in providing evidence-based literacy instruction.